BMP Real Estate Disclosure Form

TRPA Stormwater Management Program | BMP Hotline (775) 589-5202 | bmp@trpa.gov

Tahoe Regional Planning Agency (TRPA) Best Management Practices (BMPs) Disclosure

TRPA requires installation and maintenance of BMPs on all developed properties in the Tahoe Region. BMPs minimize soil erosion, maintain fire defensible space, and capture polluted stormwater before it enters Lake Tahoe.

TRPA Best Management Practices requirements: pursuant to Chapter 60.4 of the TRPA Code of Ordinances, all property owners within the Lake Tahoe Region are required to implement and maintain stormwater Best Management Practices (BMPs) and obtain a BMP Certificate. Look up a property's certificate number and date of issue on the Lake Tahoe Info Parcel Tracker (parcels.laketahoeinfo.org) or the Lake Tahoe BMPs property search.

Property

Assessor's parcel number (APN)

County

Physical address

City

State

ZIP code

Property type (check one): ☐ Single-family residence ☐ Multi-family residence ☐ Commercial or industrial

BMP status

Check one: ☐ BMP Certificate ☐ Source Control Certificate ☐ No certificate

Certificate number(s)

Date issued

Is the property included in an area-wide water quality treatment project subject to in-lieu fees? ☐ Yes ☐ No

- Property owners can print a copy of the certificate and the maintenance requirements for their records from the Lake Tahoe Info Parcel Tracker.
- Certificates are only valid and transferable as long as BMPs are maintained and remain effective.
- Deed holders of properties with shared use areas, including but not limited to shared access, parking, homeowner association common areas, and easements, may be collectively responsible for BMPs in these areas.

For properties with no certificate, the undersigned new deed holder acknowledges:

- All compliance deadlines to install BMPs for developed properties under the jurisdiction of TRPA expired Oct. 15, 2008. Property owners out of compliance with BMP requirements may be subject to enforcement and fines pursuant to Article 9 of TRPA's Rules of Procedure.
- Read the TRPA Permitting Guidelines for Residential BMPs (trpa.gov) for single-family and multi-family properties, or ask the BMP Hotline for commercial and industrial guidance.
- The Small BMP Retrofit Plan, the BMP Retrofit Permit, and the final inspection are free. For more information on installing and maintaining BMPs, visit the Lake Tahoe BMPs site or call the BMP Hotline at (775) 589-5202.
- The ability of TRPA or other agencies to conduct BMP site evaluations and inspections may be weather dependent.

New deed holder(s)

Estimated date of sale

Printed name(s)

Signature (type your name)

Second signature, if any

Date

Declaration

I hereby declare under penalty of perjury that all information submitted as part of this disclosure is true and accurate to the best of my knowledge, and I understand that should any information submitted be inaccurate, erroneous, or incomplete, TRPA may take appropriate action.

Section 60.4.4.C of the TRPA Code of Ordinances requires the new property deed holder to submit a completed copy of this form to TRPA within 30 days of sale. Submit by email to bmp@trpa.gov, by mail to PO Box 5310, Stateline, NV 89449, or in person at the TRPA front counter, 128 Market Street, Stateline, NV.

Property owners out of compliance with BMP requirements may be subject to enforcement and fines (up to $5,000 per day) pursuant to the Bi-State Compact and Article 9 of TRPA's Rules of Procedure.